



OAKRIDGE INTERNATIONAL SCHOOL  
HYDERABAD, BACHUPALLY  
A NORD ANGLIA EDUCATION SCHOOL



# BACKGROUND GUIDE



# LOK SABHA

**Agenda: Evaluating the Role of the Unlawful  
Activities (Prevention) Act (UAPA) in  
Safeguarding Internal Security**





## Letter from the Executive Board (EB) Greetings, Parliamentarians!

We feel privileged and honoured to welcome you to this simulation of the Lok Sabha at OAKBMUN 2026

We hope that this simulation proves fruitful to you and you take something valuable back from it. We also hope that by the end of the conference, you will have a better understanding of different political views in the country, current affairs, and various other aspects of the agenda that has been selected for this conference and we hope that you will be willing to participate in more such conferences.

The Executive Board has collectively designed a Background Guide for you to start off your research process. The Background Guide will help you get familiar with the agenda and its background but for the committee to progress as someone who is going to enact a politician you must carry forward external research, and as the name suggests, will provide you with very basic and guiding insights. The Background Guide is a major resource for you but should not provide a hindrance in your external research.

For your external research and background research on your portfolio, you are advised to research like there's no tomorrow! This Background Guide will only scratch the surface of the agenda that we are currently dealing with. We urge all members of the committee to take the time to read the background guide and use it as a starting point for their preparation. You are to come to the conference with an open mind, ready to meet and work with new people, actively participate in the debate in the committee, debate and argue solutions and problems, and hopefully reach a consensus.

The Executive Board looks forward to your presence at OAKBMUN 2026.

Regards,

**Adnaan Farooqui**

**Raheem Khan** Moderator

Deputy Speaker **Agenda** : Evaluating the Role of Unlawful Activities (Prevention) Act (UAPA) in Safeguarding India's Internal Security.





## Introduction

India's internal security has always faced a variety of challenges. From insurgencies in the North-East and Maoist violence in Central India to a long history of terrorism in Jammu and Kashmir, the country has had to constantly respond to new and complex threats. Additionally, newer dangers such as online radicalization, cross-border funding of extremist groups, and the misuse of technology for hate propaganda have made maintaining peace and stability more difficult. In this context, a strong legal framework is often seen as essential for empowering the state to act quickly and decisively against those who seek to harm the nation's integrity.

The Unlawful Activities (Prevention) Act, or UAPA, was first introduced in 1967 with the limited aim of addressing associations and individuals involved in unlawful or anti-national activities. Over time, especially after the repeal of earlier anti-terror laws like TADA (Terrorist and Disruptive Activities Act) and POTA (Prevention of Terrorism Act), the UAPA evolved into India's main anti-terror legislation. Amendments after the 2001 Parliament attack and the 2008 Mumbai attacks expanded the law significantly, allowing authorities to deal with terrorism-related offenses, freeze assets, and detain suspects for longer investigation periods. While the law aimed to enhance national security, its enforcement has sparked intense public and political debate. Human rights organizations, civil society groups, and even some members of the judiciary have raised concerns about provisions that permit prolonged detention without charge sheets, challenges in obtaining bail, and vague definitions of what qualifies as an "unlawful activity." There have been cases where activists, journalists, and students have been charged under the Act, leading to claims that the UAPA is sometimes misused beyond its intended purpose of counter-terrorism.

At the same time, it is vital to recognize that India's security forces face real and evolving threats. The country has experienced devastating terror attacks that called for a robust legislative response. The government often defends the UAPA as a necessary tool to prevent acts of terror and dismantle networks before they can attack. From the official perspective, the law acts as both a deterrent and a protective measure, ensuring that the state is not powerless against groups that operate across borders, exploit social divisions, and threaten national unity.

The UAPA also plays an important role in India's collaboration with other countries on counter-terrorism efforts. Given the global nature of terror networks, India's domestic legal framework must align with international obligations under UN conventions and counter-terror resolutions. By strengthening investigative powers and standardizing definitions of terrorism, the UAPA aims to bring India's laws in line with global standards. However, this alignment has drawn scrutiny, as international human rights organizations continue to examine the impact of such laws on freedom of expression and political dissent.





Over the years, several high-profile cases under the UAPA have put the law in the national spotlight. Arrests related to the Bhima Koregaon case, the Delhi riots, and the aftermath of Article 370's abrogation in Jammu and Kashmir have reignited debates on whether the Act is being used wisely. While some of these cases are still ongoing, they illustrate the differing perceptions of the UAPA among the government, the judiciary, and the public. For some, it is a vital security instrument; for others, it represents an overreach of state power.

In a country as diverse and politically active as India, where dissent and debate are crucial to democracy, the UAPA raises larger questions about the limits of state power. Can a law meant to protect the nation coexist peacefully with the values of liberty and free speech? How can India ensure that those who genuinely threaten national security are punished without bias, while innocent voices are not silenced? These dilemmas make the discussion about the UAPA not just a legal or political issue, but also a moral and constitutional one, defining the delicate balance between freedom and security in modern India.

## Historical Background

The Unlawful Activities (Prevention) Act has its roots in the years right after India gained independence. The new nation was still figuring out its identity when various groups began pushing for secession based on language, region, or ideology. The government, led by Prime Minister Jawaharlal Nehru, recognized the need for a legal way to prevent activities that threatened India's sovereignty and unity. This led to the introduction of the Unlawful Activities (Prevention) Bill, which became law in 1967 after considerable debate in Parliament. Its original goal was narrow—it focused on addressing “unlawful associations” that sought to challenge India's unity through secessionist or anti-national efforts.

In its early years, the UAPA was not viewed as an anti-terror law. Instead, it served as a political and administrative tool to ban organizations considered dangerous to the state. However, India's internal security situation changed significantly in the decades that followed. The rise of Naxalite movements in the late 1960s and 1970s, the Khalistani insurgency in Punjab in the 1980s, and cross-border terrorism in Jammu and Kashmir starting in the late 1980s required stricter laws. To counter these new threats, Parliament enacted the Terrorist and Disruptive Activities (Prevention) Act (TADA) in 1985, which gave broad powers to security agencies. TADA faced significant criticism for its misuse, arbitrary detentions, and low conviction rates, leading to its lapse in 1995.





The government tried to strengthen anti-terror laws again in 2002 with the Prevention of Terrorism Act (POTA), created after the 2001 Parliament attack. POTA aimed to fill the gap left by TADA's repeal, granting extensive powers to detain, investigate, and prosecute individuals suspected of terrorism. Yet, similar to its predecessor, POTA was criticized for being used against political opponents and minority groups. In 2004, after a change in government, POTA was repealed. Still, the need for a counter-terrorism law persisted, which led the government to integrate several provisions of POTA into the existing UAPA through an amendment.

This marked the start of UAPA's development into India's main anti-terror law. The 2004 amendment broadened the Act's scope beyond "unlawful associations" to include preventing "terrorist activities." It also allowed for the forfeiture of terrorism-related profits and permitted the designation of certain groups as "terrorist organizations." The Mumbai attacks on 26/11 in 2008 further revealed gaps in India's security and investigation systems, prompting another amendment that year. This amendment authorized the National Investigation Agency (NIA) to handle terrorism cases and gave authorities increased powers to investigate and detain suspects under the Act.

Further amendments in 2012 and 2013 aimed to align UAPA with international standards on terrorism financing and cross-border crimes. However, the 2019 amendment sparked the most debate, allowing the government to designate not only organizations but also individuals as terrorists. This shift raised worries about unchecked government power, as such designations could occur without prior judicial review. Critics argued that this blurred the lines between law enforcement and political control, while the government insisted it was crucial for tackling "lone wolf" terrorism and self-radicalized individuals outside of formal groups.

Over the years, UAPA has evolved from a law designed to address secessionist groups into a broad framework that encompasses nearly all aspects of terrorism and national security. Each amendment reflects the changing threats India faces—from armed insurgencies and communal extremism to cyber terrorism and ideological radicalization. At the same time, this law's development mirrors India's ongoing challenge to balance collective security with individual rights. Understanding this historical progression is essential for evaluating the effectiveness of UAPA and its role in India's democratic framework.

## **Constitutional and Legal Framework**

India's Constitution, adopted in 1950, lays the groundwork for individual freedoms and establishes a system for maintaining law and order. It envisions a state that guarantees liberty and equality for its citizens while also allowing the government to take necessary actions to protect the country's sovereignty and integrity. The Unlawful Activities (Prevention) Act (UAPA) operates within this sensitive balance between protecting civil liberties and ensuring internal security. To grasp the legal standing of UAPA, we must look at how it fits into the larger constitutional and judicial framework of India.





The UAPA derives its legitimacy from Article 19(2) of the Constitution, which permits the State to impose "reasonable restrictions" on freedom of speech, expression, and association to protect sovereignty, integrity, and public order. The Act specifically targets "unlawful activities" that threaten these interests. Thus, while the Constitution guarantees every citizen the right to form associations or express opinions, it recognizes that such rights cannot include activities aimed at dividing or destabilizing the nation. In many ways, UAPA embodies this constitutional principle. Another important constitutional provision connected to UAPA is Article 22, which addresses preventive detention. This article gives Parliament the power to create laws allowing for the detention of individuals linked to national security or public order. The UAPA uses this framework to allow extended detention of individuals suspected of engaging in unlawful or terrorist activities. However, this raises significant questions about personal liberty under Article 21, which guarantees the right to life and personal freedom except as established by law. Courts have often been asked to ensure that this "procedure" remains fair and reasonable.

The judiciary has played a crucial role in interpreting laws related to national security. In *A.K. Gopalan vs. State of Madras* (1950), the Supreme Court initially upheld preventive detention laws. However, in later cases like *Maneka Gandhi vs. Union of India* (1978), the Court broadened the meaning of Article 21 to include the right to a fair and reasonable procedure. This interpretation sets limits on arbitrary state actions and is particularly significant when examining UAPA provisions that allow lengthy pre-trial detentions or limit bail.

Over time, courts have also examined the UAPA for its compatibility with fundamental rights. In *Arup Bhuyan vs. State of Assam* (2011) and *Indra Das vs. State of Assam* (2011), the Supreme Court ruled that mere membership in a banned organization is insufficient for conviction unless there is evidence of involvement in violence or incitement. These rulings aimed to distinguish between ideological support and active involvement in unlawful acts—a distinction that is crucial but often challenging in a democracy.

Meanwhile, Parliament still holds the authority to create laws under the Seventh Schedule of the Constitution. "Public order" and "police" fall under the State List, while "criminal law,"

"criminal procedure," and "national security" are part of the Concurrent List. This division means both the Union and the States can legislate on these matters. The UAPA, as central legislation, applies nationwide but allows State police and agencies to investigate and prosecute cases under it, often creating coordination challenges between central and state authorities.

The legal framework surrounding UAPA also connects to India's commitments to international agreements. India is a signatory to various United Nations counter-terrorism conventions, including the International Convention for the Suppression of the Financing of Terrorism (1999). The 2008 and 2013 amendments to UAPA incorporated several international obligations, enabling India to criminalize the financing and support of terrorist organizations. Therefore, UAPA serves not only domestic security needs but also aligns India's laws with global counter-terrorism standards.





However, a continuing concern remains the bail provisions under Section 43D(5) of the UAPA, which make it very difficult for the accused to secure bail. The courts must deny bail if there is a prima facie case against the accused, even before a full trial. This effectively overturns the presumption of innocence, a fundamental principle of criminal justice. While the government defends this by stating it prevents dangerous individuals from rejoining terror networks, civil rights groups argue that it leads to the prolonged imprisonment of individuals who may later be acquitted.

Another constitutional issue arises from the 2019 amendment, which permits the central government to label individuals as terrorists without judicial oversight. Previously, only organizations could receive this designation. Critics contend that this provision violates the principle of natural justice, as it does not require the government to present evidence in court before designating someone as a terrorist. Although the Act provides a way for individuals to appeal to a review committee, questions linger about whether this meets the due process requirements outlined in the Constitution.

It is also worth noting that India's constitutional philosophy is founded on the idea that security and liberty must coexist rather than compete. The Supreme Court has consistently reminded the state that "the fight against terrorism cannot be won by abandoning constitutional values." This view reflects the belief that while laws like UAPA are necessary in a country facing real security threats, their enforcement must align with the spirit of the Constitution. National security cannot be a blanket excuse for limiting rights that are fundamental to democracy.

In conclusion, the constitutional and legal framework in which UAPA operates reveals an ongoing struggle between state power and individual freedom. The Act, by design, gives the government strong authority to act against perceived threats, but this power comes with the risk of misuse. The challenge for India's legal system is not whether UAPA should exist, but how it can be applied in a manner that respects constitutional protections, upholds due process, and fosters trust between citizens and the state. Ultimately, the strength of a democracy lies not just in the laws it enacts, but in how fairly those laws are enforced.

### **Key Provisions of UAPA**

The Unlawful Activities (Prevention) Act (UAPA) gives the government a legal framework to stop activities that threaten India's sovereignty and integrity. One of the key parts of the Act is the definition of "unlawful activity." According to Section 2(o), any action that endangers India's sovereignty and territorial integrity, or aims to achieve secession from the Union, is deemed unlawful. This includes inciting violence, planning anti-national activities, and associating with groups involved in such actions. By defining unlawful activity, the Act provides a basis for future enforcement.





Another important part of the Act allows the government to ban organisations involved in unlawful or terrorist activities. Sections 3 and 35A empower the government to label organisations as “unlawful associations” or “terrorist organisations.” Being a member of or supporting these groups can lead to criminal charges. After an organisation is banned, its activities are prohibited, its assets can be frozen, and anyone associated with it may face legal consequences. This provision has been used to target known terrorist groups and, controversially, to monitor political activist groups viewed as anti-national.

The Act gives law enforcement specific investigative and enforcement powers. Agencies like the National Investigation Agency (NIA) can investigate, collect evidence, and prosecute individuals involved in terrorism-related crimes. Under Sections 43 and 44, police can hold suspects for up to 180 days during an investigation with a magistrate's approval. This extended detention period aims to prevent evidence tampering but has raised concerns about prolonged pre-trial custody. Provisions related to individuals identified as terrorists, introduced in the 2019 amendment, significantly expand UAPA's reach. Under Section 35, the government can now classify someone as a “terrorist” if they plan or carry out acts of terror. This classification allows authorities to seize assets, limit movement, and start prosecution. Although this provision seeks to prevent lone-wolf attacks and self-radicalized individuals, critics argue it grants excessive discretionary power to the executive without prior judicial review.

UAPA also tackles the financing and support of terrorism. Sections 18 and 38 make it illegal to raise funds for terrorism, finance banned organisations, or provide material support for terrorist acts. The Act allows authorities to attach and seize properties linked to these activities. This aligns India's laws with international standards on terrorism financing, enabling better cooperation with global security efforts and tracking funds that support violence.

Finally, the Act outlines bail and trial procedures within its framework. Section 43D(5) makes it hard for accused individuals to get bail, requiring courts to confirm there is no strong case against the accused before granting relief. Additionally, the Act allows special courts to handle UAPA cases, aiming for quicker trials and focused judicial attention. While these measures strengthen enforcement, they also emphasize the need for careful judicial oversight to prevent misuse and ensure that the rights of the accused are not compromised in the name of national security.





## Key Sections of UAPA

### **Section 2(o)** - Definition of “Unlawful Activity”

This section defines any action that threatens India’s sovereignty and integrity or seeks to cause secession as an “unlawful activity.” It lays the groundwork of the Act by clarifying which actions can lead to legal consequences.

**Section 3 & 35A** - Banning of Organisations and Terrorist Organisations These provisions allow the government to label organisations as “unlawful associations” or “terrorist organisations.” Once banned, their activities are forbidden, their assets can be frozen, and individuals connected to them may face criminal charges. This is an important step to disrupt networks involved in terrorism or anti-national acts.

### **Section 18 & 38** - Financing and Support of Terrorism

These sections make it illegal to raise funds, provide financial support, or help with terrorist activities. Authorities can seize properties linked to these activities. This brings India’s laws in line with international counter-terrorism commitments and helps stop resources from reaching unlawful groups.

### **Section 35** - Designation of Individuals as Terrorists

Introduced in the 2019 amendment, this section allows the government to label an individual as a terrorist if they are involved in planning or carrying out acts of terror. This provision addresses threats from self-radicalized individuals or lone-wolf actors and enables authorities to seize assets and begin prosecution.

### **Section 43D(5)** - Bail Restrictions

This provision makes it harder for someone accused under UAPA to get bail. Courts must ensure there is no clear case against the individual before granting bail. While this aims to prevent suspects from fleeing or interfering with investigations, it has also raised concerns about personal freedom.

### **Section 16** - Review Mechanism

Individuals or organisations designated as terrorists or unlawful associations can appeal to a review committee for reconsideration. While the executive imposes the ban or designation initially, this section offers a procedural safeguard and ensures that decisions are subject to challenge.





## **Role of UAPA in Safeguarding Internal Security**

The Unlawful Activities (Prevention) Act is vital for India's internal security. It provides a legal tool to stop terrorism and other anti-national actions. By defining unlawful and terrorist activities, the Act enables authorities to act proactively against threats that might destabilize the country. In a diverse and populous nation like India, where different regions face unique security issues, UAPA offers the government a unified approach to tackle these threats without depending solely on separate state laws.

UAPA helps maintain internal security primarily by preventing and disrupting terrorist networks. It allows the government to ban organizations and monitor individuals involved in extremist activities. The Act aims to dismantle the infrastructure that supports terrorism. Authorities can track funding, freeze assets, and arrest key operatives. This makes it harder for groups to plan and carry out attacks. This preventive aspect is particularly crucial given the challenges of cross-border terrorism and homegrown radicalization, which need quick and coordinated legal action.

The Act also improves coordination between central and state agencies. Security challenges often span state lines, and UAPA gives the National Investigation Agency (NIA) the power to take on cases with national or international significance. This ensures investigations are not restricted by local laws and that specialized resources are used effectively. The legal authority provided by UAPA enables agencies to act decisively, maintaining law and order even in areas with active insurgencies or communal tensions.

Another important role of UAPA is in deterrence and intelligence collection. The potential legal consequences under the Act discourage individuals or groups from engaging in unlawful activities. Simultaneously, extended investigative powers enable authorities to gather intelligence over longer periods. This helps uncover networks and prevents potential attacks before they happen. In a country that has experienced several high-profile terror attacks, these capabilities are crucial for protecting civilian lives and critical infrastructure.

Nonetheless, it is essential to understand that UAPA's effectiveness relies not only on its legal framework but also on careful and responsible implementation. Misuse of the Act, arbitrary arrests, or prolonged detention without trial can damage public trust and weaken its role in ensuring internal security. When applied thoughtfully, with judicial oversight and respect for constitutional protections, UAPA remains a key tool in India's efforts to maintain peace, counter terrorism, and protect its citizens from internal threats.

## **Challenges and Criticisms of UAPA**





While the Unlawful Activities (Prevention) Act is an important tool for protecting India's internal security, it has faced significant criticism over the years. One major concern is its broad definitions of "unlawful activity" and "terrorist act." Critics argue that the wording in the Act can be interpreted in several ways, allowing for possible misuse. In practice, this has sometimes led to individuals being accused for actions that might be political dissent, activism, or ties to certain groups, rather than actual involvement in terrorism.

Another key issue is the difficulty in getting bail under UAPA. Section 43D(5) makes it hard for accused individuals to secure their release before trial, as courts must first confirm there is no prima facie case against them. While this aims to prevent suspects from fleeing or interfering with investigations, it has been criticized for causing extended pre-trial detention. Many individuals spend months or even years in custody before a verdict is reached, raising questions about fairness and the presumption of innocence.

The conviction rate under UAPA has also sparked debate. Despite thousands of arrests over the years, only a small percentage of cases lead to convictions. Critics contend that the law's strict rules and lengthy trials often make it tough to gather evidence that can hold up in court. This has created a perception that the Act is at times used more as a means of intimidation than effective prosecution, which undermines public trust in the legal system.

Concerns regarding political misuse have also been raised. In some instances, individuals linked to activism, student movements, or minority communities have been charged under UAPA, prompting backlash from civil society and human rights groups. While the government insists that the law is applied strictly to prevent terrorism, the perception of selective enforcement can undermine its legitimacy and foster a sense of alienation among affected groups. This tension highlights the need for transparency and accountability in implementation.

Finally, the Act has drawn criticism from human rights and international organizations, which argue that certain provisions may violate basic civil liberties. The 2019 amendment, which allows authorities to declare individuals terrorists without prior judicial review, has been especially controversial. Although these measures intend to respond to modern security threats like lone-wolf attacks, they raise important questions about due process, freedom of expression, and the rights of the accused. Balancing security with democratic freedoms remains a central challenge in assessing the effectiveness and fairness of UAPA.

### **Judicial and Parliamentary Oversight**

The Unlawful Activities (Prevention) Act gives broad powers to the executive, but it works within a system of judicial and parliamentary oversight. Indian courts have stepped in to make sure that the powers in the UAPA are used in line with the Constitution and the principles of justice. Judicial review plays a key role in stopping the misuse of authority and protecting citizens' fundamental rights, particularly in cases of long detention or being labeled a terrorist. Several important court rulings have defined the boundaries of UAPA powers. For instance, in the case of *Arup Bhuyan vs. State of Assam* (2011), the courts stressed that simply being a member of a banned organization does not warrant a conviction. There must be proof of active participation in illegal activities. These rulings illustrate the judiciary's role in differentiating between ideological beliefs and criminal actions, ensuring the law targets real threats, not dissent or political views.





Parliamentary oversight of the UAPA is also crucial. The Act has been updated several times, and parliamentary discussions and committees have offered a platform to evaluate its relevance, effectiveness, and risk of misuse. The amendments in 2004, 2008, 2013, and 2019 came with talks about balancing national security with civil rights. Committees review reports on prosecutions and the workings of special courts to suggest improvements or safeguards. This shows that the UAPA operates within a democratic framework.

Moreover, mechanisms like the Review Committee under Section 16 of the Act allow individuals or groups labeled as unlawful or terrorist to contest their designation. Although the executive enforces the ban, these review options provide a chance for judicial or semi-judicial examination. This ensures decisions are not final without oversight, though critics say the process could be clearer and quicker to avoid unnecessary hardship.

Courts have also tackled issues related to long detention and bail. In several instances, the judiciary has directed law enforcement to follow due process and ensure that the accused receive fair trials. Even though the UAPA allows for longer detention of suspects, courts serve as a check against indefinite imprisonment without charge. This relationship between executive power and judicial control is vital for maintaining the Act's legitimacy in a democratic society.

In summary, judicial and parliamentary oversight helps keep the UAPA as a security tool rather than a means of oppression. By providing checks and balances, these institutions support public trust in the law while enabling authorities to respond effectively to real threats. The UAPA's success in protecting internal security closely depends on both the powers it grants and the accountability and scrutiny involved in its execution.

### **Comparative Analysis**

Understanding India's Unlawful Activities (Prevention) Act (UAPA) alone does not fully explain its role in protecting internal security. A comparative view of how other democratic countries deal with terrorism and internal threats provides context for UAPA's provisions, strengths, and weaknesses. While each country has its own legal, political, and cultural backdrop, similarities and differences reveal best practices and potential issues.





In the United States, the main legal framework for counter-terrorism is the Patriot Act, which was passed in 2001 after the September 11 attacks. Similar to UAPA, the Patriot Act increased the powers of law enforcement agencies, allowing them to conduct surveillance, monitor communications, and detain suspects. It also made it illegal to support terrorist organizations and included ways to freeze assets. However, the Patriot Act has been criticized for violating civil liberties, sparking debates over privacy, due process, and the profiling of minority communities. Courts and Congress have stepped in to modify and limit these powers over time.

The United Kingdom uses a mix of the Terrorism Act 2000 and its later amendments, including those from 2006 and 2019. UK law broadly defines terrorism, covering not just violent acts but also actions meant to intimidate the public or influence government policy. Like UAPA, UK law allows for the banning of organizations, freezing assets, and prosecuting individuals linked to terrorism. However, UK legislation places greater emphasis on judicial oversight in detention and control orders, aiming to balance security needs with individual rights. This approach offers a model for procedural safeguards that can help prevent abuse.

In France, the legal response to terrorism involves a combination of criminal law and emergency powers, especially after the 2015 attacks. French laws allow for banning organizations, extending police powers, and preventive detention under judicial oversight. The French system strongly integrates counter-terrorism with intelligence and policing, showing how security enforcement is connected to operational capabilities. France also faces criticism for potential overreach and for the impact of anti-terror laws on civil liberties, particularly in minority communities, highlighting the ongoing tension between security and rights.

Germany addresses terrorism mainly through its Penal Code and the Act on the Federal Criminal Police Office. German law differentiates between domestic and international terrorism, focusing on evidence-based prosecution instead of preventive detention. Courts maintain strict control over investigative measures, requiring solid justification before any actions that limit personal freedoms. This differs from India's UAPA in the length of pre-trial detention and the powers granted to the executive, illustrating the different balance between freedom and security. In Australia, the Criminal Code Act 1995 and post-2001 amendments define terrorism broadly. They allow for preventive detention, make it illegal to support terrorist acts, and establish control over terrorist organizations. Australian law includes judicial review and sunset clauses for temporary measures, ensuring that extraordinary powers do not become permanent without legislative approval. This approach emphasizes accountability and periodic assessments, a practice that India could adopt to improve UAPA's implementation without compromising national security.





Canada's Anti-Terrorism Act (2001) allows for preventive arrests, criminalizes participation in terrorist groups, and authorizes intelligence gathering with oversight from courts and parliamentary committees. The Canadian framework strongly emphasizes due process, requiring evidence for prolonged detention and offering clear avenues for appeal. This law represents a conscious attempt to protect rights while addressing modern security threats, striking a balance between enforcement and civil liberties.

Given its unique security challenges, Israel has laws permitting preventive detention, military courts, and expansive powers for intelligence agencies. While these measures effectively neutralize threats, they have also drawn international criticism over human rights concerns. Israel's experience illustrates the potential conflict between the imperatives of national security and adherence to democratic norms, a challenge that India faces as well in sensitive areas like Jammu and Kashmir.

South Africa and Kenya also have anti-terrorism legislation to tackle both domestic and cross-border threats. These laws often draw from international conventions and include provisions for freezing assets, banning organizations, and prosecuting individuals. Both countries highlight the need for clear definitions and transparent judicial oversight to prevent misuse, providing lessons for India to ensure that UAPA targets real threats instead of political dissent. Across these examples, several common themes emerge. Most democratic nations struggle to find the right balance between national security and civil liberties. Effective counter-terrorism laws include provisions for banning organizations, freezing assets, and prosecuting individuals, similar to UAPA. However, countries like Germany, Canada, and the UK stress the importance of judicial oversight, due process, and evidence-based prosecution, serving as vital safeguards against misuse—lessons India could adopt more effectively.

Another key observation is the influence of international conventions on domestic anti-terror laws. Most countries tailor their legislation to align with United Nations Security Council resolutions and other international frameworks regarding terrorism financing, cross-border crimes, and hostage-taking. India's UAPA amendments, particularly those in 2008 and 2013, reflect this practice, showcasing the global context of counter-terrorism laws.

Additionally, preventive detention and surveillance powers often raise concerns. While these powers are crucial for timely action against imminent threats, unchecked usage can undermine public trust. Comparative experiences indicate that time-limited measures, regular judicial reviews, and clear criteria for application can help maintain legitimacy and effectiveness—elements India could explore to refine UAPA provisions.

Finally, these comparisons reveal that while threats differ in nature, the principles of accountability, proportionality, and transparency are universally necessary. A strong law like UAPA can only be effective if implemented responsibly, with clear evidence, judicial oversight, and procedural fairness. This analysis emphasizes that India's challenge lies not in the existence of the law itself, but in ensuring it fulfills its intended purpose without compromising democratic values.





## Recent Amendments and Controversies

The Unlawful Activities (Prevention) Act (UAPA) has changed a lot over the years, especially due to recent amendments that expanded its scope and powers. These changes aimed to improve India's ability to tackle terrorism and new threats. However, they have also raised concerns about civil liberties, due process, and the balance between state power and individual rights.

One major amendment occurred in 2019. The government allowed the designation of individuals as terrorists, not just organisations. This change aimed to deal with the increasing threat of lone-wolf attacks and self-radicalised individuals, as well as transnational terrorism networks that may not be tied to formal organisations. Security experts welcomed this move for its preventive potential, but critics worried about the broad discretionary power it gave to the executive, especially since prior judicial approval is not needed for such designations.

The 2019 amendment also broadened the definition of "terrorist activities" to include acts that pose a threat to India's security, public order, or financial systems. While this aligns UAPA with modern counter-terrorism practices and international standards, critics argue it is too vague. This could potentially include political, social, or even academic activities. Civil rights groups claim that these broad definitions increase the chances of misuse and wrongful arrests.

Other amendments, particularly those from 2008 and 2013, focused on boosting the investigative powers of law enforcement. These changes enabled the National Investigation Agency (NIA) to conduct investigations across states, freeze assets tied to terrorism, and access financial records more easily. While these moves have enhanced the government's ability to disrupt terror networks, they have also raised concerns about checks and balances, especially when these powers might restrict the rights of the accused before trial.

Several high-profile cases in recent years have put UAPA in the spotlight. Incidents linked to the Bhima Koregaon case, the Delhi riots, and protests after the abrogation of Article 370 have led to claims that UAPA is being enforced selectively. Critics contend this gives the impression that specific communities or political dissenters are being targeted, which can erode public trust in the law and its intentions. Supporters argue that these measures are necessary to prevent anti-national activities and safeguard internal security.

Concerns have also surfaced regarding long pre-trial detentions and challenges in obtaining bail. In recent cases, accused individuals spent months or even years in custody without a conviction. This situation highlights the tension between preventive detention and the constitutional right to personal liberty under Article 21. Defenders of the Act say these provisions prevent suspects from fleeing or interfering with investigations. Still, the judiciary has often had to intervene to ensure fairness and due process.





The 2019 amendment and its application have caught the attention of international observers. Human rights groups, UN bodies, and foreign governments have voiced worries about the law potentially suppressing dissent and limiting freedom of expression. India has defended the UAPA based on national security concerns, emphasizing the need to address evolving threats like terrorism financing, online radicalisation, and lone-wolf attacks. This ongoing debate showcases the challenge of balancing security needs with democratic values.

In conclusion, recent amendments to UAPA show India's effort to respond to a rapidly changing security landscape. While the law has become a more effective tool for fighting terrorism, it has also intensified discussions about civil liberties, judicial oversight, and risks of misuse. The controversies surrounding its implementation highlight the need for careful and transparent application, ensuring that national security does not undermine India's democratic principles. **Recommendations and Future Directions**

While the Unlawful Activities (Prevention) Act (UAPA) is a key tool in India's internal security, there is a growing agreement that it needs reforms and careful implementation to improve its effectiveness and legitimacy. One key recommendation is to increase judicial oversight, especially regarding the designation of individuals as terrorists and extended detention. Involving courts more actively in these areas can help make sure the law targets real threats while protecting constitutional rights.

Another important direction is to clarify and narrow the definitions in the Act. Broad terms like "terrorist activity" or "unlawful activity" allow for different interpretations, which can lead to misuse. Clearer definitions, backed by judicial interpretation and parliamentary guidelines, would reduce confusion, prevent abuse, and give law enforcement clear criteria for action. This would also boost public trust in the fairness of the law.

Strengthening procedural safeguards is equally important. Recommendations include setting stricter timelines for investigations, ensuring regular reviews of preventive detention, and making it easier for those accused under UAPA to access legal aid. By improving transparency in legal processes, India can balance quick responses to threats with the protection of fundamental rights, enhancing the democratic credibility of the law.





In an international context, India can improve by adopting best practices from other democracies. Countries like Canada, Germany, and the UK focus on judicial oversight, regular reviews of anti-terrorism measures, and evidence-based prosecution. India could look into similar methods, such as regular parliamentary reviews of UAPA cases, sunset clauses for some provisions, and independent oversight committees to monitor how the law is applied.

Additionally, a stronger focus on preventive measures beyond legal enforcement is recommended. Engaging with communities, running counter-radicalization programs, sharing intelligence, and using technology for monitoring can support the legal framework. These efforts address the root causes of extremism and lessen the reliance on punitive laws, leading to a more comprehensive approach to internal security.

Finally, it is vital to maintain ongoing dialogue among the government, judiciary, civil society, and citizens. Policies and changes under UAPA should reflect security needs while respecting India's diverse and democratic values. By including feedback from various stakeholders, India can ensure that UAPA continues to protect the nation without undermining the freedoms and rights that are the foundation of its democracy.





### Questions To Ponder Upon.

1. Are the current definitions of "unlawful activity" and "terrorist act" in the UAPA sufficiently precise, or are they overly broad and open to misinterpretation? How can these definitions be refined to prevent misuse while maintaining their effectiveness?
2. What constitutes legitimate dissent versus an "unlawful activity" that threatens national security? Where should the line be drawn in a vibrant democracy like India?
3. The 2019 amendment allowed for the designation of individuals as terrorists. What are the merits and demerits of this provision compared to only designating organizations?
4. Section 43D(5) makes bail exceptionally difficult to obtain. Does this provision effectively prevent threats to the investigation, or does it undermine the fundamental principle of "innocent until proven guilty"?
5. The conviction rate under UAPA is notably low. What does this indicate about the quality of evidence and investigation in cases booked under this Act? Is the law being used more as a tool for detention than for successful prosecution?
6. How can the issue of prolonged pre-trial detention be addressed to ensure that the rights of the accused are protected without compromising national security investigations?
7. What is the appropriate balance between executive power and judicial oversight in the application of the UAPA, particularly concerning the banning of organizations and the designation of individuals as terrorists?
8. Are the existing oversight mechanisms such as the Review Committee under Section 16 sufficient, transparent, and effective? What reforms could strengthen these accountability structures?
9. Should India adopt "sunset clauses" (where provisions expire unless re-approved by Parliament) for certain stringent aspects of the UAPA, as seen in other democracies, to ensure regular legislative review?
10. To what extent has the UAPA been successful in its primary objective of "safeguarding India's internal security"? What are its key successes and failures?
11. Has the UAPA been applied in a manner that disproportionately targets specific communities, activists, or political dissenters? If so, what is the impact of this perception on social cohesion and trust in the state?
12. How does the UAPA impact India's international standing, especially regarding human rights records, and how does it align with or diverge from global counter-terrorism norms?
13. What lessons can India learn from the anti-terrorism laws and their implementation in other democracies like the UK, Canada, and Germany, particularly concerning judicial oversight and safeguarding civil liberties?
14. Beyond a punitive legal framework, what other measures such as community engagement, counter-radicalization programs, and improving socio-economic conditions are essential for a comprehensive internal security strategy?





15. Looking ahead, what specific amendments or policy changes would you propose to the UAPA to ensure it remains an effective tool against modern security threats while firmly upholding the democratic rights enshrined in the Indian Constitution?

### **Links for Further Research**

<https://www.indiacode.nic.in/bitstream/123456789/1470/3/A1967-37.pdf>

[https://prsindia.org/files/bills\\_acts/bills\\_parliament/2019/Unlawful%20Activities%20\(Prevention\)%20Amendment%20Act,%202019.pdf](https://prsindia.org/files/bills_acts/bills_parliament/2019/Unlawful%20Activities%20(Prevention)%20Amendment%20Act,%202019.pdf)

[https://www.scobserver.in/wp-content/uploads/2021/10/Sajal\\_Awasthi\\_v.\\_Union\\_of\\_India.pdf](https://www.scobserver.in/wp-content/uploads/2021/10/Sajal_Awasthi_v._Union_of_India.pdf)

<https://www.amnesty.org/en/latest/news/2025/09/india-umar-khalid-five-year-imprisonment-with-out-trial/>